IN THE DISTRICT COURT OF THE FIRST CIRCUIT

HONOLULU DIVISION

STATE OF HAWAI'I

Electronically Filed
FIRST CIRCUIT
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| ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors,<br><br>Plaintiff and Counterclaim Defendant,<br><br>vs.<br><br>NIKODEM PIKOR,<br><br>Defendant and Counterclaim Plaintiff. | CIVIL NO. 1RC19-1-003776<br><br>**[*Proposed*] STIPULATION AND ORDER REGARDING CONTINUANCE OF HEARING ON PLAINTIFF AND COUNTERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC.'S MOTION FOR ATTORNEYS' FEES AND COSTS [DKT. 398]**<br><br>Judge: The Honorable Summer Kupau-Odo<br>Trial: May 12, 2022<br>October 26-27, 2022<br>January 11-12, 2023<br>April 5, 2023<br><br>**Old Hearing:**<br>Date: November 18, 2024<br>Time: 8:30 a.m.<br>Judge: Presiding<br><br>**New Hearing:**<br>Date: January 13, 2025<br>Time: 8:30 a.m.<br>Judge: Presiding |
| NIKODEM PIKOR,<br><br>Defendant and Third Party Plaintiff,<br><br>vs.<br><br>THYSSENKRUPP ELEVATOR CORPORATION, a foreign profit corporation,<br><br>Third-Party Defendant. | |

**STIPULATION AND ORDER REGARDING CONTINUANCE OF HEARING ON PLAINTIFF AND COUNTERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC.'S MOTION FOR ATTORNEYS' FEES AND COSTS**

At the original hearing date of August 5, 2024, at 8:30 a.m. on Plaintiff and Counterclaim Defendant Association of Apartment Owners of Marine Surf Waikiki, Inc.'s Motion for Attorneys'

Fees and Costs [Dkt. 398] (the "Motion"), the Court encouraged the parties to attempt to mediate the disputed issues set forth in the Motion and the memoranda filed in connection with the Motion or to seek a settlement conference with the Court. The Court continued the hearing on the Motion to November 18, 2024 at 8:30 a.m. and noted that if additional time was needed to complete a mediation or seek a settlement conference, that the parties could seek a further continuance from the Court.

The earliest available date for the mediation is November 22, 2024 and the mediation has been scheduled accordingly. Due to scheduling issues, the next available date for the hearing to be held on the Motion is January 13, 2025 at 8:30 a.m.

Accordingly, IT IS HEREBY STIPULATED between Plaintiff/Counterclaim Defendant ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors ("Plaintiff" or "Association"), and Defendant/Counterclaim Plaintiff NIKODEM PIKOR ("Defendant" or "Pikor"), that the hearing on the Motion shall be further continued and shall be scheduled on Monday, January, 13, 2025 at 8:30 a.m., subject to the Court's approval below, and an Amended Notice of Hearing shall be filed with the Court following entry of this Stipulation and Order.

DATED: Honolulu, Hawai'i, October 29, 2024.

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*/s/Glenn S. Horio*
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ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors

*/s/James S. Ferguson*
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*/s/Amanda L. Dutcher*
TERRANCE M. REVERE
AMANDA L. DUTCHER
Attorneys for Defendant/Counterclaim Plaintiff
NIKODEM PIKOR

APPROVED AND SO ORDERED

JUDGE OF THE ABOVE-ENTITLED COURT EI/WT